

**CHAPTER i.**

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to the Scottish Insurance Companies (Superannuation Fund). A.D. 1914.
[30th April 1914.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Scottish Insurance Companies (Superannuation Fund) Order Confirmation Act 1914. Short title.

A.D. 1914.

S C H E D U L E.

SCOTTISH INSURANCE COMPANIES (SUPERANNUATION FUND).

Provisional Order to establish a Fund for the provision of allowances on superannuation or disablement for the benefit of the employees of certain statutory Scottish Insurance Companies to incorporate a managing body to hold and administer the Fund to regulate contributions and benefits to provide for the admission to the Fund of other statutory companies carrying on insurance business in Scotland and for other purposes.

WHEREAS it is expedient that a Fund should be established for the provision of allowances on superannuation or disablement for behoof of employees of the companies named in the First Schedule hereto :

And whereas it is expedient that a managing body should be incorporated for the purpose of holding and administering such Fund and that provision should be made for the management thereof and for regulating the contributions to be paid to the Fund and the rights of the beneficiaries therein :

And whereas it is also expedient that provision should be made for the admission to the benefits of the Fund of employees of other statutory companies carrying on insurance business in Scotland :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

Short title.

1. This Order may be cited for all purposes as the Scottish Insurance Companies (Superannuation Fund) Order 1914.

Interpre-
tation.

2. In this Order the following words and expressions shall have the following meanings respectively unless there be something in the subject or context repugnant to such construction :—

The expression "the companies" shall subject to the provisions of this Order mean the companies and societies named in the First Schedule hereto incorporated by the statutes severally and respectively specified in the said schedule; A.D. 1914.

The expression "the Fund" shall mean the Fund to be established under this Order and all lands and heritages money stocks funds securities investments and generally all property both heritable and movable real and personal forming part of or belonging or due to the Fund;

The expression "the committee" shall mean the persons by this Order incorporated for the purpose of holding and administering the Fund and all persons hereafter appointed for that purpose under the provisions of this Order;

The expression "employee" shall mean an officer clerk or other salaried official in the service of any of the companies not being a person in temporary or occasional employment or in receipt of a weekly wage.

3. A fund to be called "The Scottish Insurance Companies Superannuation Fund" shall be established for the payment of allowances on superannuation or disablement to the employees of the companies in accordance with the provisions of this Order and of the rules to be made thereunder The Fund shall come into operation as from and after the first day of May one thousand nine hundred and fourteen. Establishment of fund.

4. George James Lidstone manager of the Scottish Widows' Fund Life Assurance Society Thomas McLeod Gardiner manager of the Edinburgh Life Assurance Company James Allan Cook manager of the Scottish Union and National Insurance Company Leonard Walter Dickson manager of the Standard Life Assurance Company William Hutton manager of the Scottish Amicable Life Assurance Society George Macritchie Low manager of the Scottish Equitable Life Assurance Society and James Graham Watson manager of the Scottish Provident Institution and all persons hereafter appointed under the provisions of this Order shall be and are hereby incorporated by the name of "The Scottish Insurance Companies Superannuation Fund Committee" and by that name shall be a body corporate with perpetual succession and a common seal and with all the privileges of a body corporate and by that name may sue and be sued and Incorporation of managers.

[Ch. i.] *Scottish Insurance Companies* [4 GEO. 5.]
(*Superannuation Fund*) *Order Confirmation Act, 1914.*

A.D. 1914. shall collect receive hold and administer the moneys and investments composing the Fund in accordance with the provisions of this Order When any member of the committee dies or resigns his membership of the committee or ceases to hold office in the company of which he is an officer the directors of such company may appoint the manager for the time being or other officer of such company to be a member of the committee in place of such member.

Composition
of fund. 5. The Fund shall consist of moneys to be contributed and paid by the companies to the committee under the provisions of this Order and of any sums of money or other property which may from time to time be paid or contributed or gifted or bequeathed to the Fund and of the accumulations and investments of such moneys and the revenue derived from such investments.

Investments. 6. All sums of money and other property belonging to the committee may be invested or lent out in or upon any investments or securities authorised by law for the investment of trust funds and may also with the authority or approval in each case of not less than three fourths of the members of the committee for the time being be invested or lent out in or upon any other investments securities or obligations or any other classes or descriptions of investments securities or obligations including securities payable to bearer or transferable by delivery.

First meet-
ing of com-
mittee. 7. Within one month after the passing of the Act confirming this Order a meeting of the committee shall be held At this meeting the committee shall elect a chairman from among the members of the committee to hold office until the first annual meeting to be held as hereinafter provided and shall make such arrangements as they may deem necessary and appropriate for bringing this Order into operation The said meeting shall be convened by the said George James Lidstone whom failing by the said James Allan Cook.

Annual
meeting. 8. In and after the year one thousand nine hundred and fifteen a meeting of the committee shall be held annually in the month of February or at such other time as may be fixed by the committee of the date hour and place of which meeting not less than seven clear days' written notice shall be given to each member of the committee at which meeting the audited accounts of the Fund for the preceding year shall be submitted

and such other business shall be transacted as may be prescribed by the rules to be framed by the committee as hereinafter provided At the said annual meeting the committee shall appoint one of their number to be chairman of the committee The chairman shall hold office until the next annual meeting and shall be eligible for re-election. A.D. 1914.

9. A meeting of the committee may be summoned by the chairman at any time and shall be summoned by him on a written requisition to that effect signed by two or more members of the committee Seven clear days' written notice shall be given of any meeting to be called under this section and the notice shall specify the business to be brought before the meeting. Special
meetings.

10. The chairman holding office for the time being shall when present preside at all meetings of the committee and in his absence a chairman shall be appointed from among their own number by the members present at the meeting At all meetings of the committee three shall constitute a quorum and all questions shall be determined by a majority of those present The chairman of every meeting shall have both a deliberative and a casting vote. Chairman of
meetings and
quorum.

11. All deeds and other writings sealed by the corporate seal and signed by two of the members of the committee and the treasurer or such other official as may be appointed by the committee for this purpose shall be held to be validly executed on behalf of the committee. Execution of
deeds.

12. The committee shall have power to make rules for the regulation and administration of the Fund in so far as the same are not inconsistent with the provisions of this Order and to alter or repeal the same to appoint sub-committees of their own number to whom they may commit any of the powers of the committee to delegate to any one or more of their own number such powers as they may deem proper and generally to do all such things as may in their judgment be requisite and necessary in relation to the management of the Fund and with a view to carrying into effect the purposes of this Order. Rules.

13. The Committee may appoint a treasurer and such officers as from time to time they may consider necessary for the proper Appoint-
ment of
officers.

A.D. 1914. administration of the Fund may define their duties and tenure of office and make provision out of the Fund for their remuneration if any.

Contributions to Fund.

14. The committee shall fix such rates of annual or other contributions to be paid by the companies to the Fund in respect of (1) the minimum allowances specified in the Second Schedule to this Order (hereinafter referred to as the "minimum allowances") and (2) the additional allowances mentioned in the section of this Order of which the marginal note is "Additional and other allowances" as in the judgment of the committee shall be sufficient to provide the minimum and additional allowances respectively and may alter or vary the said rates from time to time as they may deem necessary. The committee shall in accordance with such rates determine the amount of the contributions payable by each of the companies to the committee from time to time in respect of the said minimum and additional allowances respectively and the amount of the contributions so fixed in respect of the minimum allowances shall be in the case of each of the companies respectively a debt due and owing by that company to the committee and shall be paid or provided by the company out of gross revenue as part of the working expenses.

Beneficiaries of Fund.

15. As from and after the first day of May one thousand nine hundred and fourteen every employee of each of the companies in the United Kingdom whose remuneration for the time being does not exceed one hundred and sixty pounds per annum shall be entitled out of the Fund as a term of his employment to the minimum allowances and the committee shall be bound to make good the same to him out of the Fund or if the Fund shall be insufficient then out of additional contributions to be levied upon the companies in such proportions as the committee shall determine and the provisions in the section of this Order of which the marginal note is "Contributions to Fund" shall apply to such additional contributions as well as to the contributions referred to in that section.

Increase of allowances.

16. The minimum allowances may be increased or the limit of remuneration of the persons entitled to the same may be extended if a resolution to that effect shall be adopted unanimously by the committee.

17. The minimum allowances shall be strictly alimentary in the person of the recipient and every assignation of or charge on and every agreement to assign or charge the minimum allowances shall be void.

A.D. 1914.

Allowances
to be alimen-
tary.

18.—(1) In the event of any employee entitled to the minimum allowances having his remuneration increased to more than one hundred and sixty pounds per annum or ceasing to be employed by any of the companies and thereby forfeiting his claim upon the Fund the company by which he is employed or was last employed as the case may be shall receive payment out of the Fund of such sum as the committee shall fix as representing the liability of the Fund in respect of such employee.

Transfer of
beneficiaries.

(2) In the event of any employee who is entitled to the minimum allowances transferring his services from one to another of the companies his right to the minimum allowances shall continue as if he had remained in the service of the former company. The company whose service such employee has left shall receive payment from the committee out of the Fund of such sum as the committee shall fix as representing the liability of the Fund in respect of him and the company to which such employee has transferred his services shall make payment to the committee for behoof of the Fund of the sum so fixed or otherwise shall contribute to the Fund in respect of such employee at the rate fixed by the committee according to the age he has attained.

19. All contributions required for the provision of the minimum allowances shall be paid entirely and solely by the companies without recourse against any employee.

Contribu-
tions pay-
able by com-
panies.

20. In case any one or more of the companies shall voluntarily or by agreement make to any employee in their service who is entitled to the minimum allowances an allowance or payments on superannuation or during disablement equal to or in excess of the corresponding minimum allowances to which such employee would have been entitled under this Order the committee on satisfactory evidence of such allowances or payments having been made to such employee personally for his own use shall pay to such company the sum which the said employee would otherwise have been entitled to receive out of the Fund.

Relief of
companies
making pay-
ments to
beneficiaries.

[Ch. i.] *Scottish Insurance Companies* [4 GEO. 5.]
(*Superannuation Fund*) *Order Confirmation Act, 1914.*

A.D. 1914.

Additional
and other
allowances.

21. Apart from the minimum allowances the committee may on such terms and conditions as they see fit arrange with any or all of the companies to provide additional superannuation or disablement allowances for employees of such companies whose remuneration does not exceed one hundred and sixty pounds per annum and also to provide superannuation or disablement allowances of any amount for employees of such companies whose remuneration exceeds one hundred and sixty pounds per annum. Provided always that the company or companies arranging with the committee for the provision of such additional or other allowances shall alone have any claim upon the Fund in respect thereof and no employee of such company or companies so arranging with the committee shall have any claim upon the Fund in respect of such additional or other allowances. And provided further that the company or companies arranging with the committee for the provision of such additional or other allowances and engaging to pay the same to their employees or any of them shall be entitled to enter into agreements with such employees for the deduction from their remuneration of contributions towards such additional or other allowances.

Periodical
investiga-
tions.

22. The committee shall cause proper and regular accounts of the Fund to be kept and shall hold an investigation of the financial position of the Fund as at thirty-first December one thousand nine hundred and eighteen and thereafter at such intervals not exceeding five years as the committee may prescribe such investigation to include a valuation of the assets of the Fund by the committee and of the liabilities by a Fellow of the Faculty of Actuaries in Scotland or a Fellow of the Institute of Actuaries to be appointed by the committee and remunerated out of the Fund. The committee shall consider the result of such investigation and determine any question arising thereon and shall take such course of action with regard to any resultant surplus or deficiency as they may deem best in the interests of the Fund. Provided always that it shall not be lawful in any case to reduce the minimum allowances.

Accounts.

23. The committee shall cause the accounts relating to the minimum allowances to be kept separately from the accounts of the additional and other allowances and to be separately investigated at each periodical investigation of the Fund. Any surplus appearing in respect of the minimum allowances on

such investigation shall be separately dealt with by the committee and in case of a deficiency the companies shall be jointly and severally liable to make good the same each contributing in proportion to the ascertained liability at the date of the investigation in respect of its employees entitled to the minimum allowances. A.D. 1914.

24. The accounts of the Fund shall be audited each year by an auditor to be appointed by the committee and remunerated out of the Fund and an abstract of the accounts together with the auditor's certificate shall be submitted to the committee at the annual meeting to be held in terms of the section of this Order of which the marginal note is "Annual meeting." Audit.

25. The companies are hereby authorised and empowered to apply their funds in and towards the payment to the committee for behoof of the Fund of the contributions and other payments contemplated and provided for in this Order and in and towards any other purpose of this Order notwithstanding in case of any of the companies that such application is not authorised by any Act or Order relating to that company. Powers of companies.

26. The committee on the one hand and the directors of any statutory company carrying on the business of insurance in Scotland and having its principal office or one of its principal offices in Scotland (not being one of the companies named in the First Schedule hereto) on the other hand may agree upon such terms as the committee and such directors may arrange for the admission of such company to the benefits of this Order and the committee and such directors may apply to the Secretary for Scotland for his consent to such admission. Provided that before application be made to the said Secretary such application shall be approved by the members of such company in the same manner as if that company were applying for a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 in accordance with the General Orders under that Act. The Secretary for Scotland upon being satisfied that the application has been so approved may by writing under his hand signify his consent thereto and thereupon the provisions of this Order shall apply as from the date of such consent to such company and its employees as if such company had been included among the companies named in the First Schedule hereto and the directors of such company may appoint the Admission of other companies to Fund.

[Ch. i.] *Scottish Insurance Companies* [4 GEO. 5.]
(Superannuation Fund) Order Confirmation Act, 1914.

A.D. 1914. manager for the time being or other officer of such company
 ————— to be a member of the committee.

Application
 of Assurance
 Companies
 Act 1909
 in certain
 events.

27. Nothing in this Order shall be deemed to authorise the committee or the Fund to carry on any class of assurance business as defined in the Assurance Companies Act 1909 or shall be deemed to exempt the committee or the Fund from the provisions of that Act or of any general Act relating to assurance companies in the event of their carrying on such business.

Costs of
 Order.

28. All costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the companies named in the First Schedule to this Order in proportion to the respective numbers of their employees entitled as at the first day of May one thousand nine hundred and fourteen to the minimum allowances.

SCHEDULES referred to in the foregoing Order.

THE FIRST SCHEDULE.

Name of Company.	When established.	Accumulated Assets by last published Statement.	Act of Incorporation.
The Scottish Widows' Fund and Life Assurance Society.	1815	£ 22,159,445	24 & 25 Vict. c. lxxxv.
The Edinburgh Life Assurance Company.	1823	4,557,932	8 & 9 Vict. c. lxxvi.
The Scottish Union and National Insurance Company.	1824	6,834,224	10 & 11 Vict. c. xxxiv.
The Standard Life Assurance Company.	1825	13,781,846	10 Edw. 7. and 1 Geo. 5. c. x.
The Scottish Amicable Life Assurance Society.	1826	6,058,535	12 & 13 Vict. c. xxii.
The Scottish Equitable Life Assurance Society.	1831	6,234,712	2 Edw. 7. c. xxxviii.
The Scottish Provident Institution.	1837	15,491,824	11 & 12 Vict. c. cvi.
		75,118,518	

THE SECOND SCHEDULE.

A.D. 1914.

MINIMUM ALLOWANCES.

I.—SUPERANNUATION ALLOWANCE.

On retirement after reaching the age of sixty-five and after service with any one or more of the companies for not less than twenty years immediately preceding such retirement a yearly allowance for the remainder of life at the rate of twenty eightieths of the average salary for the five years preceding the date of retirement with an additional one eightieth of such average salary for each completed year of service in excess of twenty years but the yearly allowance in no case to exceed one-half of such average salary or a maximum of 80*l.* The allowance to be in each case paid by monthly instalments with a proportionate payment to the date of death.

II.—DISABLEMENT ALLOWANCE.

In the case of incapacity for work consequent upon disease or bodily or mental disablement continuing for more than six months a payment at the rate of 1*l.* 5*s.* per month and proportionately for shorter periods to commence at the expiry of the said six months and to continue so long as the incapacity lasts.

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